



**ARIZONA HOUSE OF REPRESENTATIVES
FLOOR AMENDMENT EXPLANATION**
57th Legislature, 2nd Regular Session
Majority Research Staff

HB 2136: civil terrorism; disorderly conduct; subversion

KOLODIN FLOOR AMENDMENT

1. Redefines the elements of *civil terrorism* and *subversion*.
2. Strikes the enhanced penalty for the offence of disorderly conduct.
3. Removes riot, felony disorderly conduct and subversion from the list of predicate offenses for racketeering charges.
4. Adds language specifying that the civil terrorism and subversion statutes are to be construed by any trier of fact as being written to maximally safeguard the rights of the people under the U.S. and Arizona constitutions.

ADDITIONAL COW
KOLODIN FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2136
(Reference to House engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.
[Green underlining in brackets] indicates text added to new session law or text restoring existing law.
~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.
~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.
<<Green carets>> indicate a section added to the bill.
~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 13-2301, Arizona Revised Statutes, is amended to
3 read:

4 13-2301. Definitions

5 A. For the purposes of sections 13-2302, 13-2303 and 13-2304:

6 1. "Collect an extension of credit" means to induce in any way any
7 person to make repayment of that extension.

8 2. "Creditor" means any person making an extension of credit or any
9 person claiming by, under or through any person making an extension of
10 credit.

11 3. "Debtor" means any person to whom an extension of credit is made
12 or any person who guarantees the repayment of an extension of credit, or
13 in any manner undertakes to indemnify the creditor against loss resulting
14 from the failure of any person to whom an extension is made to repay the
15 extension.

16 4. "Extend credit" means to make or renew any loan or to enter into
17 any agreement, tacit or express, whereby the repayment or satisfaction of
18 any debt or claim, whether acknowledged or disputed, valid or invalid, and
19 however arising, may or shall be deferred.

20 5. "Extortionate extension of credit" means any extension of credit
21 with respect to which it is the understanding of the creditor and the
22 debtor when the extension is made that delay in making repayment or
23 failure to make repayment could result in the use of violence or other
24 criminal means to cause harm to the person or the reputation or property
25 of any person.

1 6. "Extortionate means" means the use, or an express or implicit
2 threat of use, of violence or other criminal means to cause harm to the
3 person or the reputation or property of any person.

4 7. "Repayment of any extension of credit" means the repayment,
5 satisfaction or discharge in whole or in part of any debt or claim,
6 acknowledged or disputed, valid or invalid, resulting from or in
7 connection with that extension of credit.

8 B. For the purposes of section 13-2305, 13-2306 or 13-2307:

9 1. "Dealer in property" means a person who buys and sells property
10 as a business.

11 2. "Stolen property" means property of another as defined in
12 section 13-1801 that has been the subject of any unlawful taking.

13 3. "Traffic" means to sell, transfer, distribute, dispense or
14 otherwise dispose of stolen property to another person, or to buy,
15 receive, possess or obtain control of stolen property, with the intent to
16 sell, transfer, distribute, dispense or otherwise dispose of the property
17 to another person.

18 C. For the purposes of this chapter:

19 1. "Animal activity" means a commercial enterprise that uses
20 animals for food, clothing or fiber production, agriculture or
21 biotechnology.

22 2. "Animal facility" means a building or premises where a
23 commercial activity in which the use of animals is essential takes place,
24 including a zoo, rodeo, circus, amusement park, hunting preserve and horse
25 and dog event.

26 3. "Animal or ecological terrorism" means any felony in violation
27 of section 13-2312, subsection B that involves at least three persons
28 acting in concert, that involves the intentional or knowing infliction of
29 property damage in an amount of more than \$10,000 to the property that is
30 used by a person for the operation of a lawfully conducted animal activity
31 or to a commercial enterprise that is engaged in a lawfully operated
32 animal facility or research facility and that involves either:

33 (a) The use of a deadly weapon or dangerous instrument.

34 (b) The intentional or knowing infliction of serious physical
35 injury on a person engaged in a lawfully conducted animal activity or
36 participating in a lawfully conducted animal facility or research
37 facility.

38 4. "Biological agent" means any microorganism, virus, infectious
39 substance or biological product that may be engineered through
40 biotechnology or any naturally occurring or bioengineered component of any
41 microorganism, virus, infectious substance or biological product and that
42 is capable of causing any of the following:

43 (a) Death, disease or physical injury in a human, animal, plant or
44 other living organism.

45 (b) The deterioration or contamination of air, food, water,
46 equipment, supplies or material of any kind.

1 5. "Combination" means persons who collaborate in carrying on or
2 furthering the activities or purposes of a criminal syndicate even though
3 such persons may not know each other's identity, membership in the
4 combination changes from time to time or one or more members may stand in
5 a wholesaler-retailer or other arm's length relationship with others as to
6 activities or dealings between or among themselves in an illicit
7 operation.

8 6. "Communication service provider" has the same meaning prescribed
9 in section 13-3001.

10 7. "Criminal syndicate" means any combination of persons or
11 enterprises engaging, or having the purpose of engaging, on a continuing
12 basis in conduct that violates any one or more provisions of any felony
13 statute of this state.

14 8. "Explosive agent" means an explosive as defined in section
15 13-3101 and flammable fuels or fire accelerants in amounts over fifty
16 gallons but excludes:

17 (a) Fireworks as defined in section 36-1601.

18 (b) Firearms.

19 (c) A propellant actuated device or propellant actuated industrial
20 tool.

21 (d) A device that is commercially manufactured primarily for the
22 purpose of illumination.

23 (e) A rocket having a propellant charge of less than four ounces.

24 9. "Material support or resources" includes money or other
25 financial securities, financial services, lodging, sustenance, training,
26 safehouses, false documentation or identification, communications
27 equipment, facilities, weapons, lethal substances, explosives, personnel,
28 transportation, disguises and other physical assets but does not include
29 medical assistance, legal assistance or religious materials.

30 10. "Public establishment" means a structure, vehicle or craft that
31 is owned, leased or operated by any of the following:

32 (a) This state or a political subdivision as defined in section
33 38-502.

34 (b) A public agency as defined in section 38-502.

35 (c) The federal government.

36 (d) A health care institution as defined in section 36-401.

37 (e) A private educational institution.

38 11. "Research facility" means a laboratory, institution, medical
39 care facility, government facility, public or private educational
40 institution or nature preserve at which a scientific test, experiment or
41 investigation involving the use of animals is lawfully carried out,
42 conducted or attempted.

43 12. "Terrorism":

44 (a) Means any felony, including any completed or preparatory
45 offense, that involves the use of a deadly weapon or a weapon of mass
46 destruction or the intentional or knowing infliction of serious physical
47 injury with the intent to do any of the following:

1 ~~(a)~~ (i) Influence the policy or affect the conduct of this state
2 or any of the political subdivisions, agencies or instrumentalities of
3 this state.

4 ~~(b)~~ (ii) Cause substantial damage to or substantial interruption
5 of public communications, communication service providers, public
6 transportation, common carriers, public utilities, public establishments
7 or other public services.

8 ~~(c)~~ (iii) Intimidate or coerce a civilian population.

9 ~~(d)~~ (iv) Further the goals, desires, aims, public pronouncements,
10 manifestos or political objectives of any terrorist organization.

11 (b) DOES NOT INCLUDE CIVIL TERRORISM.

12 13. "Terrorist organization" means any organization that is
13 designated by the United States department of state as a foreign terrorist
14 organization under section 219 of the immigration and nationality act
15 (8 United States Code section 1189).

16 14. "Toxin" means the toxic material of plants, animals,
17 microorganisms, viruses, fungi or infectious substances or a recombinant
18 molecule, whatever its origin or method of reproduction, including:

19 (a) Any poisonous substance or biological product that may be
20 engineered through biotechnology and that is produced by a living
21 organism.

22 (b) Any poisonous isomer or biological product, homolog or
23 derivative of such a substance.

24 15. "Vector" means a living organism or molecule, including a
25 recombinant molecule or biological product that may be engineered through
26 biotechnology, that is capable of carrying a biological agent or toxin to
27 a host.

28 16. "Weapon of mass destruction" means:

29 (a) Any device or object that is designed or that the person
30 intends to use to cause multiple deaths or serious physical injuries
31 through the use of an explosive agent or the release, dissemination or
32 impact of a toxin, biological agent or poisonous chemical, or its
33 precursor, or any vector.

34 (b) Except as authorized and used in accordance with a license,
35 registration or exemption by the department of health services pursuant to
36 section 30-672, any device or object that is designed or that the person
37 intends to use to release radiation or radioactivity at a level that is
38 dangerous to human life.

39 D. For the purposes of sections 13-2312, 13-2313, 13-2314 and
40 13-2315, unless the context otherwise requires:

41 1. "Control", in relation to an enterprise, means the possession of
42 sufficient means to allow substantial direction over the affairs of an
43 enterprise and, in relation to property, means to acquire or possess.

44 2. "Enterprise" means any corporation, partnership, association,
45 labor union or other legal entity or any group of persons associated in
46 fact although not a legal entity.

1 3. "Financial institution" means a banking or securities regulatory
2 agency of the United States, a business coming within the definition of a
3 bank, financial agency or financial institution as prescribed by 31 United
4 States Code section 5312 or 31 Code of Federal Regulations section
5 1010.100 or a business under the jurisdiction of the securities division
6 of the corporation commission, the state real estate department or the
7 department of insurance and financial institutions.

8 4. "Racketeering" means any act, including any preparatory or
9 completed offense, that is chargeable or indictable under the laws of the
10 state or country in which the act occurred and, if the act occurred in a
11 state or country other than this state, that would be chargeable or
12 indictable under the laws of this state if the act had occurred in this
13 state, and that would be punishable by imprisonment for more than one year
14 under the laws of this state and, if the act occurred in a state or
15 country other than this state, under the laws of the state or country in
16 which the act occurred, regardless of whether the act is charged or
17 indicted, and the act involves either:

18 (a) Terrorism, animal terrorism or ecological terrorism that
19 results or is intended to result in a risk of serious physical injury or
20 death.

21 (b) Any of the following acts if committed for financial gain:

22 (i) Homicide.

23 (ii) Robbery.

24 (iii) Kidnapping.

25 (iv) Forgery.

26 (v) Theft.

27 (vi) Bribery.

28 (vii) Gambling.

29 (viii) Usury.

30 (ix) Extortion.

31 (x) Extortionate extensions of credit.

32 (xi) Prohibited drugs, marijuana or other prohibited chemicals or
33 substances.

34 (xii) Trafficking in explosives, weapons or stolen property.

35 (xiii) Participating in a criminal syndicate.

36 (xiv) Obstructing or hindering criminal investigations or
37 prosecutions.

38 (xv) Asserting false claims, including false claims asserted
39 through fraud or arson.

40 (xvi) Intentional or reckless false statements or publications
41 concerning land for sale or lease or sale of subdivided lands or sale and
42 mortgaging of unsubdivided lands.

43 (xvii) Resale of realty with intent to defraud.

44 (xviii) Intentional or reckless fraud in the purchase or sale of
45 securities.

46 (xix) Intentional or reckless sale of unregistered securities or
47 real property securities.

1 (xx) A scheme or artifice to defraud.
2 (xxi) Obscenity.
3 (xxii) Sexual exploitation of a minor.
4 (xxiii) Prostitution.
5 (xxiv) Restraint of trade or commerce in violation of section
6 34-252.
7 (xxv) Terrorism.
8 (xxvi) Money laundering.
9 (xxvii) Obscene or indecent telephone communications to minors for
10 commercial purposes.
11 (xxviii) Counterfeiting marks as proscribed in section 44-1453.
12 (xxix) Animal terrorism or ecological terrorism.
13 (xxx) Smuggling of human beings.
14 (xxxi) Child sex trafficking.
15 (xxxii) Sex trafficking.
16 (xxxiii) Trafficking of persons for forced labor or services.
17 (xxxiv) Manufacturing, selling or distributing misbranded drugs in
18 violation of section 13-3406, subsection A, paragraph 9.
19 (xxxv) Holding an unauthorized racing meeting as proscribed in
20 section 5-107.01.
21 (c) ~~[FELONY DISORDERLY CONDUCT, RIOT,]~~ CIVIL TERRORISM ~~[OR~~
22 ~~SUBVERSION]~~.
23 5. "Records" means any book, paper, writing, computer program,
24 data, image or information that is collected, recorded, preserved or
25 maintained in any form of storage medium.
26 6. "Remedy racketeering" means to enter a civil judgment pursuant
27 to this chapter or chapter 39 of this title against property or a person
28 who is subject to liability, including liability for injury to the state
29 that is caused by racketeering or by actions in concert with racketeering.
30 E. For the purposes of sections 13-2316, 13-2316.01 and 13-2316.02:
31 1. "Access" means to instruct, communicate with, store data in,
32 retrieve data from or otherwise make use of any resources of a computer,
33 computer system or network.
34 2. "Access device" means any card, token, code, account number,
35 electronic serial number, mobile or personal identification number,
36 password, encryption key, biometric identifier or other means of account
37 access, including a canceled or revoked access device, that can be used
38 alone or in conjunction with another access device to obtain money, goods,
39 services, computer or network access or any other thing of value or that
40 can be used to initiate a transfer of any thing of value.
41 3. "Computer" means an electronic device that performs logic,
42 arithmetic or memory functions by the manipulations of electronic or
43 magnetic impulses and includes all input, output, processing, storage,
44 software or communication facilities that are connected or related to such
45 a device in a system or network.
46 4. "Computer contaminant" means any set of computer instructions
47 that is designed to modify, damage, destroy, record or transmit

1 information within a computer, computer system or network without the
2 intent or permission of the owner of the information, computer system or
3 network. Computer contaminant includes a group of computer instructions,
4 such as viruses or worms, that is self-replicating or self-propagating and
5 that is designed to contaminate other computer programs or computer data,
6 to consume computer resources, to modify, destroy, record or transmit data
7 or in some other fashion to usurp the normal operation of the computer,
8 computer system or network.

9 5. "Computer program" means a series of instructions or statements,
10 in a form acceptable to a computer, that allow the functioning of a
11 computer system in a manner designed to provide appropriate products from
12 the computer system.

13 6. "Computer software" means a set of computer programs, procedures
14 and associated documentation concerned with the operation of a computer
15 system.

16 7. "Computer system" means a set of related, connected or
17 unconnected computer equipment, devices and software, including storage,
18 media and peripheral devices.

19 8. "Critical infrastructure resource" means any computer or
20 communications system or network that is involved in providing services
21 necessary to ensure or protect the public health, safety or welfare,
22 including services that are provided by any of the following:

23 (a) Medical personnel and institutions.

24 (b) Emergency services agencies.

25 (c) Public and private utilities, including water, power,
26 communications and transportation services.

27 (d) Fire departments, districts or volunteer organizations.

28 (e) Law enforcement agencies.

29 (f) Financial institutions.

30 (g) Public educational institutions.

31 (h) Government agencies.

32 9. "False or fraudulent pretense" means the unauthorized use of an
33 access device or the use of an access device to exceed authorized access.

34 10. "Financial instrument" means any check, draft, money order,
35 certificate of deposit, letter of credit, bill of exchange, credit card or
36 marketable security or any other written instrument as defined in section
37 13-2001 that is transferable for value.

38 11. "Network" includes a complex of interconnected computer or
39 communication systems of any type.

40 12. "Property" means financial instruments, information, including
41 electronically produced data, computer software and programs in either
42 machine or human readable form, and anything of value, tangible or
43 intangible.

44 13. "Proprietary or confidential computer security information"
45 means information about a particular computer, computer system or network
46 that relates to its access devices, security practices, methods and
47 systems, architecture, communications facilities, encryption methods and

1 system vulnerabilities and that is not made available to the public by its
2 owner or operator.

3 14. "Services" includes computer time, data processing, storage
4 functions and all types of communication functions.

5 Sec. 2. Title 13, chapter 23, Arizona Revised Statutes, is amended
6 by adding sections 13-2308.04 and 13-2308.05, to read:

7 13-2308.04. Civil terrorism; classification

8 A. A PERSON COMMITS CIVIL TERRORISM IF [ALL OF THE FOLLOWING
9 ELEMENTS ARE SATISFIED:

10 1.] THE PERSON [INTENTIONALLY] COMMITS VANDALISM[;] [OR]
11 DESTRUCTION OF PROPERTY, [DISORDERLY CONDUCT, DEPRIVATION OF CIVIL RIGHTS
12 OR ANY OTHER UNLAWFUL ACT WITH THE INTENT TO COERCE OR INTIMIDATE A
13 CIVILIAN POPULATION. FOR THE PURPOSES OF THIS SUBSECTION, "INTENT TO
14 COERCE OR INTIMIDATE A CIVILIAN POPULATION" MEANS THE PERSON ACTED WITH
15 THE CONSCIOUS OBJECTIVE TO COMPEL A BROAD CLASS OF PERSONS TO ACT OR
16 REFRAIN FROM ACTING THROUGH THE USE OR THREAT OF UNLAWFUL ACTIVITY OR
17 PHYSICAL DAMAGE TO PROPERTY.] [IMMINENTLY THREATENS TO CAUSE UNLAWFUL AND
18 SERIOUS PHYSICAL INJURY TO ANOTHER PERSON OR CAUSES UNLAWFUL AND SERIOUS
19 PHYSICAL INJURY TO ANOTHER PERSON.

20 2. THE PERSON ACTS WITH THE INTENT TO DEPRIVE ANOTHER PERSON OF THE
21 OTHER PERSON'S RIGHTS UNDER THE BILL OF RIGHTS OR ARTICLE II, SECTIONS 2,
22 4, 5, 6 AND 21, CONSTITUTION OF ARIZONA, THROUGH FEAR THAT THE PERSON WILL
23 CAUSE THE OTHER PERSON UNLAWFUL, IMMINENT AND SERIOUS PHYSICAL INJURY OR
24 IMMINENT VANDALIZATION OR UNLAWFUL DESTRUCTION OF THE OTHER PERSON'S
25 PROPERTY IF THE OTHER PERSON DOES NOT ACT AS THE PERSON WISHES.]

26 [B:] [3.] [A VIOLATION OF SUBSECTION A OF THIS SECTION MAY BE
27 ESTABLISHED BY EVIDENCE THAT INCLUDES ANY] [THE PERSON DOES EITHER] OF THE
28 FOLLOWING:

29 [1. PLANNING, PREPARING OR COORDINATING ACTS THAT ARE DESIGNED TO
30 CAUSE WIDESPREAD FEAR, PHYSICAL INJURY OR SUBSTANTIAL PROPERTY DAMAGE:

31 2. USING WEAPONS, DANGEROUS INSTRUMENTS, EXPLOSIVES, INCENDIARY
32 DEVICES OR MATERIALS THAT ARE INTENDED TO CAUSE SIGNIFICANT DESTRUCTION.]

33 [(a) INTENTIONALLY USES A DEADLY WEAPON IN FURTHERANCE OF THE
34 PERSON'S OBJECTIVE TO COMPEL A BROAD CLASS OF CITIZENS TO ACT OR REFRAIN
35 FROM ACTING.]

36 [3:] [(b)] [TARGETING] [INTENTIONALLY TARGETS] CRITICAL
37 INFRASTRUCTURE, PUBLIC UTILITIES, TRANSPORTATION SYSTEMS[;] [OR]
38 GOVERNMENT BUILDINGS [OR PUBLIC ESTABLISHMENTS].

39 [4. MAKING STATEMENTS, COMMUNICATIONS, MANIFESTOS OR DIRECTIVES
40 BEFORE, DURING OR AFTER THE ACT THAT ADVOCATE OR DIRECT THE USE OF
41 VIOLENCE OR UNLAWFUL FORCE TO INFLUENCE THE BEHAVIOR OF A CIVILIAN
42 POPULATION:

43 5. PARTICIPATING IN AN ORGANIZED EFFORT INVOLVING TWO OR MORE
44 PERSONS IN WHICH THE UNLAWFUL ACTS WERE COORDINATED TO ACHIEVE WIDESPREAD
45 DISRUPTION THROUGH VIOLENT OR DESTRUCTIVE MEANS.

46 C. EVIDENCE THAT A PERSON EXPRESSED POLITICAL, SOCIAL OR
47 IDEOLOGICAL VIEWS, WITHOUT ACCOMPANYING EVIDENCE OF INTENT TO USE OR

1 ~~THREATEN UNLAWFUL ACTIVITY OR SUBSTANTIAL PROPERTY DESTRUCTION, IS NOT~~
2 ~~SUFFICIENT TO ESTABLISH A VIOLATION OF SUBSECTION A OF THIS SECTION.]~~

3 ~~[B. THIS SECTION IS AT ALL TIMES TO BE CONSTRUED BY ANY TRIER OF~~
4 ~~LAW OR FACT IN A MANNER CALCULATED TO MAXIMALLY SAFEGUARD THE RIGHTS OF~~
5 ~~THE PEOPLE OF THIS STATE UNDER THE FIRST AMENDMENT, CONSTITUTION OF THE~~
6 ~~UNITED STATES, AND ARTICLE II, SECTIONS 2, 4, 5, 6 AND 21, CONSTITUTION OF~~
7 ~~ARIZONA.]~~

8 ~~[D.] [C.] CIVIL TERRORISM IS A CLASS 5 FELONY.~~

9 13-2308.05. Subversion; classification; definition

10 A. A PERSON COMMITS SUBVERSION IF THE PERSON ~~[ACTS WITH THE INTENT~~
11 ~~TO DEPRIVE ANOTHER PERSON OF THE OTHER PERSON'S RIGHTS UNDER THE BILL OF~~
12 ~~RIGHTS OR ARTICLE II, SECTIONS 2, 4, 5, 6 AND 21, CONSTITUTION OF~~
13 ~~ARIZONA.] COMMITS AN UNLAWFUL ACT WITH THE INTENT TO [DO ANY] [CAUSE~~
14 ~~SERIOUS PHYSICAL INJURY TO ANOTHER PERSON AND BOTH] OF THE FOLLOWING~~
15 ~~[APPLY]:~~

16 1. ~~[ADVANCE] [THE PERSON DOES EITHER OF THE FOLLOWING:~~

17 ~~(a) INTENTIONALLY ADVANCES] THE INTERESTS OF [A TERRORIST]~~
18 ~~[AN] ORGANIZATION [THAT HAS BEEN DECLARED A TERRORIST ORGANIZATION BY THIS~~
19 ~~STATE OR THAT IS DESIGNATED A FOREIGN TERRORIST ORGANIZATION BY THE UNITED~~
20 ~~STATES DEPARTMENT OF STATE AS OF THE EFFECTIVE DATE OF THIS SECTION BUT~~
21 ~~THE LEGISLATURE, BY CONCURRENT RESOLUTION, MAY REMOVE SUCH STATE OR~~
22 ~~FEDERAL DESIGNATION FOR THE PURPOSES OF THIS SECTION ONLY].~~

23 ~~[2.] [(b)] [ATTEMPT TO ACT] [INTENTIONALLY ACTS] AS A FOREIGN~~
24 ~~GOVERNMENT AGENT AS DEFINED IN SECTION 13-4006.~~

25 ~~[3. SUBVERT THE GOVERNMENT OF THIS STATE OR THE UNITED STATES.~~

26 B. ~~FOR THE PURPOSES OF SUBSECTION A OF THIS SECTION, "INTENT TO~~
27 ~~SUBVERT THE GOVERNMENT" MEANS THE CONSCIOUS OBJECTIVE TO IMPAIR, OVERTHROW~~
28 ~~OR PREVENT THE FUNCTIONING OF GOVERNMENT THROUGH UNLAWFUL VIOLENCE, FORCE~~
29 ~~OR THE DESTRUCTION OF PROPERTY.]~~

30 ~~[C.] [2.] [A VIOLATION OF SUBSECTION A OF THIS SECTION MAY BE~~
31 ~~ESTABLISHED BY EVIDENCE THAT INCLUDES ANY] [THE PERSON COMMITS ONE] OF THE~~
32 ~~FOLLOWING:~~

33 ~~[1.] [(a)] PLANNING OR ENGAGING IN ACTS [THAT ARE] INTENDED TO~~
34 ~~CAUSE SERIOUS PHYSICAL INJURY, DEATH OR SUBSTANTIAL DESTRUCTION OF~~
35 ~~GOVERNMENT PROPERTY.~~

36 ~~[2.] [(b)] ATTEMPTING TO SEIZE, DAMAGE OR DISABLE CRITICAL~~
37 ~~GOVERNMENT FACILITIES, PUBLIC INFRASTRUCTURE OR COMMUNICATION SYSTEMS.~~

38 ~~[3.] [(c)] USING OR PLANNING TO USE WEAPONS, EXPLOSIVES OR OTHER~~
39 ~~DESTRUCTIVE DEVICES.~~

40 ~~[4.] [(d)] COORDINATING ACTION WITH OTHERS IN WHICH THE UNLAWFUL~~
41 ~~OBJECTIVE [INVOLVES] [INVOLVED] VIOLENT INTERFERENCE WITH GOVERNMENTAL~~
42 ~~OPERATIONS.~~

43 ~~[D. ADVOCACY, PROTEST, DISSENT OR POLITICAL OPPOSITION, WITHOUT~~
44 ~~EVIDENCE OF INTENT TO USE OR THREATEN UNLAWFUL VIOLENCE OR FORCE, DOES NOT~~
45 ~~CONSTITUTE SUBVERSION UNDER THIS SECTION.]~~

46 ~~[B. THIS SECTION IS AT ALL TIMES TO BE CONSTRUED BY ANY TRIER OF~~
47 ~~LAW OR FACT IN A MANNER CALCULATED TO MAXIMALLY SAFEGUARD THE RIGHTS OF~~

1 THE PEOPLE OF THIS STATE UNDER THE FIRST AMENDMENT, CONSTITUTION OF THE
2 UNITED STATES, AND ARTICLE II, SECTIONS 2, 4, 5, 6 AND 21, CONSTITUTION OF
3 ARIZONA.]

4 [E.] [C.] SUBVERSION IS A CLASS 5 FELONY.

5 ~~<<Sec. 3. Section 13-2904, Arizona Revised Statutes, is amended to~~
6 ~~read:~~

7 ~~13-2904. Disorderly conduct, classification~~

8 ~~A. A person commits disorderly conduct if, with intent to disturb~~
9 ~~the peace or quiet of a neighborhood, family or person, or with knowledge~~
10 ~~of doing so, such person:~~

11 ~~1. Engages in fighting, violent or seriously disruptive behavior;~~
12 ~~or~~

13 ~~2. Makes unreasonable noise; or~~

14 ~~3. Uses abusive or offensive language or gestures to any person~~
15 ~~present in a manner likely to provoke immediate physical retaliation by~~
16 ~~such person; or~~

17 ~~4. Makes any protracted commotion, utterance or display with the~~
18 ~~intent to prevent the transaction of the business of a lawful meeting,~~
19 ~~gathering or procession; or~~

20 ~~5. Refuses to obey a lawful order to disperse issued to maintain~~
21 ~~public safety in dangerous proximity to a fire, a hazard or any other~~
22 ~~emergency; or~~

23 ~~6. Recklessly handles, displays or discharges a deadly weapon or~~
24 ~~dangerous instrument.~~

25 ~~B. Disorderly conduct under:~~

26 ~~1. Subsection A, paragraph 6 OF THIS SECTION is a class 6 felony~~
27 ~~UNLESS THE DISORDERLY CONDUCT IS COMMITTED BY A GROUP COMPRISED OF AT~~
28 ~~LEAST THREE PERSONS, IN WHICH CASE THE OFFENSE IS A CLASS 5 FELONY.~~
29 ~~Disorderly conduct under~~

30 ~~2. Subsection A, paragraph 1, 2, 3, 4 or 5 OF THIS SECTION is a~~
31 ~~class 1 misdemeanor UNLESS THE DISORDERLY CONDUCT IS COMMITTED BY A GROUP~~
32 ~~COMPRISED OF AT LEAST THREE PERSONS, IN WHICH CASE THE OFFENSE IS A CLASS~~
33 ~~6 FELONY.>>~~

34 ~~Sec. 3. Section 13-2906, Arizona Revised Statutes, is amended to~~
35 ~~read:~~

36 13-2906. Obstructing a highway or other public thoroughfare;
37 classification; definition

38 A. A person commits obstructing a highway or other public
39 thoroughfare if the person, alone or with other persons, does any of the
40 following:

41 1. Having no legal privilege to do so, recklessly interferes with
42 the passage of any highway or public thoroughfare by creating an
43 unreasonable inconvenience or hazard.

44 2. Intentionally activates a pedestrian signal on a highway or
45 public thoroughfare if the person's reason for activating the signal is
46 not to cross the highway or public thoroughfare but to do both of the
47 following:

1 (a) Stop the passage of traffic on the highway or public
2 thoroughfare.

3 (b) Solicit a driver for a donation or business.

4 3. After receiving a verbal warning to desist, intentionally
5 interferes with passage on a highway or other public thoroughfare or
6 entrance into a public forum that results in preventing other persons from
7 gaining access to a governmental meeting, a governmental hearing or a
8 political campaign event.

9 B. Obstructing a highway or other public thoroughfare under:

10 1. Subsection A, paragraph 3 of this section is a class 1
11 misdemeanor.

12 2. Subsection A, paragraph 1 of this section is a class 2
13 misdemeanor, except that a second or subsequent violation within a period
14 of twenty-four months is a class 1 misdemeanor.

15 3. Subsection A, paragraph 2 of this section is a class 3
16 misdemeanor.

17 C. NOTWITHSTANDING SUBSECTION B OF THIS SECTION, OBSTRUCTING A
18 HIGHWAY OR OTHER PUBLIC THOROUGHFARE UNDER SUBSECTION A, PARAGRAPH 1, 2 OR
19 3 OF THIS SECTION IS A CLASS 6 FELONY IF THE OBSTRUCTION IS COMMITTED BY A
20 GROUP COMPRISED OF AT LEAST THREE PERSONS.

21 ~~C.~~ D. For the purposes of this section, "public forum" has the
22 same meaning prescribed in section 15-1861.

23 Sec. 3. Effective date

24 This act is effective from and after December 31, 2026.

25 Enroll and engross to conform

26 Amend title to conform

ALEXANDER KOLODIN

~~2136FloorKOLODIN2.docx~~

~~02/25/2026~~

~~05:16 PM~~

~~C: JV~~

~~130KDFCUI~~

2136FloorKOLODIN2.docx

03/02/2026

08:49 PM

H: NM/lis

130KDFCUI